



RVSR JOB AID

Pre-service Disabilities Noted in Service

Review 38 CFR 3.303(c) for additional information on pre-service disabilities noted in service. The content of this regulation is summarized in the table below.

If the existence of a disability prior to service is established based on medical principles so universally recognized as to constitute fact, the you may conclude that the condition pre-existed service. In this case, no additional or confirmatory evidence needed.

Table 1: Pre-service disabilities noted in service

Situational Facts	Correct Conclusion	Veteran Example
• Evidence or discovery of residual condition during service • No evidence of active disease or injury that caused the residual condition	Conclude that the condition pre-existed service	Example 1: Joseph Marks entered service at age 20. Entrance examination noted the back was normal. Three weeks after entry, he complained of severe back pain. X-ray images documented a diagnosis of scoliosis. The Veteran was discharged from service for the defect. Although not noted on entrance exam, medical principles so universally recognized constitutes the fact that Mr. Mark's scoliosis is a defect that existed prior to service and did not develop during the six weeks since entrance. You may conclude that the condition pre-existed service without additional or confirmatory evidence needed. Example 2: Sheena Shuler, a 30 year old Reservist was called to active duty on 5/18/2013 for a two year enlistment. During the entrance exam, it was noted Ms. Shuler was taking Lopressor for high blood pressure. Current blood pressure readings show 135 over 80.



RVSR JOB AID

Situational Facts	Correct Conclusion	Veteran Example
If lesions or symptoms of chronic disease manifested either: • From date of enlistment • So close to the date of enlistment that the disease could not have originated in so short a period	Conclude that the chronic disease pre-existed service	Jon Franklin reported for his enlistment exam and was given a clean bill of health with no pre-service conditions. A month later, during his first week of service, Mr. Franklin reported to the base clinic complaining of abdominal pain, diarrhea, and blood in the stool. After testing, Mr. Franklin was diagnosed with ulcerative colitis, a chronic disease. Since the chronic condition manifested so close to the date of enlistment that the disease could not have originated in so short a period, you should conclude that the ulcerative colitis pre-existed service.
For an infectious condition, consider: • Circumstances of the infection • Date of manifestation	Conclude that the infectious disease pre-existed service if manifested in less than the incubation period after reporting for duty.	Kyle Oliver reported for his enlistment exam and was given a clean bill of health with no pre-service conditions. He reported for duty a week later. Two weeks into service, Mr. Oliver was diagnosed with scabies, an infectious disease with a one to two month incubation period. He was unsure when or how he was exposed. Since the scabies manifested in less than the incubation period after reporting for duty, you should conclude that this disease pre-existed service.



RVSR JOB AID

Situational Facts	Correct Conclusion	Veteran Example
For personality disorders: • Characterized by developmental defects or pathological trends in the personality structure • Manifested by a lifelong pattern of action For behavior, chronic psychoneurosis of long duration, or other psychiatric symptomatology: • Shown to have existed prior to service with the same manifestations during service • Were the basis of the service diagnosis	Conclude that the mental disorder pre-existed service	Shawn Cooper joined the military and within 5 to 6 months of entry showed symptoms of disobeying orders, not staying clean, and having symptoms of severe mood swings. He was diagnosed as having a bipolar disorder and discharged. Records obtained show the Veteran was treated for bipolar disorder during high school. VA examination indicated that the symptomatology during service was a natural progression of the mental disability.

NOTE: Congenital or developmental defects, refractive error of the eye, personality disorders and mental deficiency as such are not diseases or injuries with the meaning of applicable legislation.